

Formal grievance procedure

1 . Step 1: Understanding the options

If an employee has a problem at work it's usually a good idea for them to [raise it informally first](#).

The employer should [respond even if the problem's raised informally](#).

A grievance procedure is a formal way for an employee to raise a problem or complaint to their employer.

The employee can raise a grievance if:

- they feel raising it informally has not worked
- they do not want it dealt with informally
- it's a very serious issue, for example [sexual harassment](#) or [whistleblowing](#)

Following a formal procedure

When an employee raises a formal grievance, their employer should follow a formal procedure.

Your organisation should have its own grievance procedure. Otherwise you must follow the steps in this guide and the [Acas Code of Practice on disciplinary and grievance procedures](#).

If your organisation has its own grievance procedure, it should:

- follow the Acas Code, as a minimum
- be in writing and easy to find

[Use an example grievance procedure](#)

The Acas Code and the law

You must follow a full and fair procedure in line with the Acas Code for any discipline or grievance case. The procedure you've followed will be taken into account if the case reaches an employment tribunal.

The size of the organisation

Regardless of the size of your organisation, all employers should follow a full and fair grievance procedure as set out in this guide. They should:

- make clear they'll deal with grievances fairly and consistently
- [investigate](#) to get as much information as possible
- allow the employee to bring a relevant person to a grievance meeting
- give everyone a chance to have their say before making a decision

- take actions and make decisions as soon as they can
- allow the employee to [appeal](#) against the grievance outcome

The procedure can be adjusted depending on size.

For example, a manager of a small business with one or 2 employees might need to manage the grievance procedure on their own.

The employee should always:

- raise the grievance as soon as they can
- take any actions expected of them as soon as they can

Training for employers and managers

You can get [Acas training on discipline and grievance procedures](#) to learn more about the Acas Code and how to follow a formal procedure.

If there are related grievances

If there are 2 or more related grievances, the employer should:

- still follow the formal procedure, for all the grievances
- keep information confidential
- consider what each employee wants
- explain to the employees how it is dealing with the grievances

There is some flexibility in how to run the grievance procedure in these situations. For example, the employer could decide to have a single meeting to cover all the grievances, if the employees agree.

Each employee still has the right to their own grievance meeting in which employees who are part of the grievance are not present.

Using mediation

You can use mediation at any stage. Mediation involves an independent, impartial person working with both sides to find a solution.

The mediator can be someone from inside or outside your organisation. If they're from outside your organisation, you might need to pay.

Both sides will need to agree to mediation.

You can:

- [find out more about mediation at work](#)
- [get mediation training from Acas](#)

2. Step 2: Raising a grievance

The employee should check their organisation grievance policy to find out:

- how to raise a formal grievance
- who they should send it to
- what the full grievance procedure is

If there is no organisation grievance procedure, the employee should approach their line manager first. If they do not feel comfortable doing that, they should approach someone else they feel comfortable talking to, for example another manager or someone in HR.

Employees can also talk to their trade union, if they have one, for advice and support.

How an employee can raise a grievance

The employee with the grievance should put it in writing to whoever is most appropriate. This could be their line manager, HR manager or employer.

[Use our grievance letter template](#)

The letter or email should include:

- what the grievance is about
- any evidence, for example a payslip or employment contract
- what they want their employer to do about it

It's a good idea for the employee to be specific where possible, for example 'I would like to be paid on time in future'.

It's also helpful to be realistic.

For example, an employee believes they have not been paid their correct wages because someone in payroll made a one-off mistake. In this situation it's usually realistic to expect the employer to investigate and amend the payment if necessary. It's not usually realistic to expect payroll staff to be dismissed.

You can also get help from Citizens Advice on:

- [writing a grievance letter](#)
- [checking you've included the right information](#)

If employers or employees do not follow a formal procedure

Not following a formal grievance procedure can affect:

- people's morale and confidence at work
- the outcome, if the employee later makes a claim to an [employment tribunal](#)

A tribunal will take into account whether an employee has a genuine reason for not following a formal procedure.

For example, an employee might find it difficult to attend a grievance meeting with someone accused of sexually harassing them.

Related content

[/acas-code-of-practice-on-disciplinary-and-grievance-procedures](#)

[/acas-guide-to-discipline-and-grievances-at-work](#)

3. Step 3: Responding to a grievance

Your organisation should have its own formal grievance procedure. This should follow the [Acas Code of Practice for disciplinary and grievance procedures](#), as a minimum.

If your organisation does not have a formal procedure, you should follow the Acas Code.

Where possible, the person who handles the grievance procedure should have had training. Acas offers [training in handling grievance procedures](#).

The Acas Code and the law

You must follow a full and fair procedure in line with the Acas Code for any discipline or grievance case. The procedure you've followed will be taken into account if the case reaches an employment tribunal.

If anything similar has happened before

To keep things fair an employer should do all of the following:

- aim to follow the same fair procedure
- gather evidence from all sides
- consider all the information

Keeping written records

The employer should keep written records of what takes place during the grievance procedure. This includes:

- what the grievance is about
- any decisions and actions taken, and why
- whether the employee [appeals](#) the grievance outcome

Protecting personal information

The employer should keep all personal information confidential.

If the grievance is about someone else at work

Before getting more information and evidence, the employer should:

- avoid assuming anything about the grievance or the people involved
- be sensitive to the circumstances and needs of the person the grievance is about, as well as the person who raised the grievance

Deciding on disciplinary action

An employer should not discipline anyone involved in a grievance before getting all the information and evidence they can.

[Find out more about the disciplinary procedure](#)

If there are concerns about employees in a grievance case working together while the grievance is looked into, the employer should consider what else they can do in the short term.

For example, where an employee has said that someone at work is bullying them, the employer could see whether work schedules can be rearranged temporarily so that the two people do not work together.

If the employer takes this type of action, they should make clear to the employees that it's not a punishment but a temporary change while they look into the grievance.

Investigating

The employer should investigate the grievance so that they can make a fair decision about the grievance.

[Find out more about investigations](#)

If a crime could have occurred

If the grievance could be a criminal matter, for example it's related to an assault, the police might need to be involved.

Employers and employees should use their own judgement about when to involve the police.

Keep talking

It's important for the employer to keep talking confidentially with:

- the employee who raised the grievance
- anyone else involved in the grievance

Clear, regular and confidential communication can help avoid:

- misunderstandings
- a drop in work morale
- stress or other mental health problems
- further action, such as more grievances
- legal action later on

Looking after employees' wellbeing and mental health

Going through a grievance procedure can be very stressful for everyone involved. This includes:

- the person the grievance is about
- the person raising the grievance

Looking out for employees' wellbeing and offering support can help prevent:

- absence
- mental health problems arising
- existing mental health problems getting worse

For example, as well as regular communication, the employer could arrange any meetings in a more private and comfortable location if this would help an employee.

[Find more advice on supporting mental health at work](#)

Grievances about a customer, client or anyone else who does not work for the organisation

The employer should follow the formal grievance procedure in the same way.

If a grievance is raised while a disciplinary is taking place

The employer can pause the disciplinary procedure and deal with the grievance first. If the disciplinary and grievance cases are related, the employer can deal with both at the same time.

If a grievance is raised by more than one employee

If more than one person in an organisation has the same grievance, it might be best to raise it collectively.

The employer and employees should follow your organisation's 'collective grievance' policy.

If your organisation does not have this, the employees could:

- get more information from their trade union or workplace representative
- raise the grievance themselves, for example by agreeing on one person to raise it and communicate for all of them

Using mediation

You can use mediation at any stage.

[Find out more about mediation at work](#)

4. Step 4: The grievance meeting

When an employee raises a formal grievance, the employer should hold a meeting with them. A grievance meeting is sometimes called a 'hearing'.

The employer should hold the meeting 'without unreasonable delay' – ideally within 5 working days. They should allow employees enough time to prepare for the meeting.

To keep the procedure fair, the employer should:

- consider information or evidence from all sides
- see if a similar grievance has happened before and aim to follow the same fair procedure

The employee, employer and any companions should make every effort to attend the meeting on the date set.

Employers should [keep a confidential record](#) of:

- what's said at the meeting
- evidence they've gathered
- any decisions or actions taken

Preparing for the meeting

The employer can arrange for someone not involved in the grievance to:

- take notes at the meeting
- act as a witness to what's said in the meeting, if necessary

They should also:

- arrange for an interpreter if the employee has difficulty speaking English
- consider whether [reasonable adjustments](#) are needed for a disabled employee or anyone they bring with them

The employee can bring any evidence about the grievance, for example relevant emails, to show and discuss at the meeting.

The right to be accompanied

By law, any employee or worker can bring a 'companion' (relevant person) to a grievance meeting. This is known as 'the right to be accompanied'.

The right to be accompanied applies when the grievance is about an employer breaching a legal or contractual duty. This could include duties implied into the contract, for example the duty of care.

If the employer is not sure whether the right to be accompanied applies, it's good practice to allow the employee to be accompanied.

The person must choose their companion from one of the following:

- a colleague
- a workplace trade union representative who's certified by their union to act as a companion
- an official employed by a trade union

Under discrimination law, the employer needs to consider a disabled employee's request to bring someone else for additional support, such as a carer.

It's up to the employer to agree if the person wants to bring anyone else. It can depend on the contract – for example, some employment contracts might allow for a partner or legal representative.

Requesting a companion

If the employee wants to bring a companion, they should make a 'reasonable request' to their employer.

To make a reasonable request, the employee should:

- tell their employer the name of the companion and whether they're a colleague or a trade union representative
- give their employer enough notice, so they can make arrangements for the companion to attend the meeting

The companion should also be given enough time to prepare for the meeting, for example to look at any evidence.

What happens in the meeting

The meeting is the chance for the person who raised the grievance to:

- explain the grievance
- show any evidence they have

It's also the chance for the employer to ask questions, so that they know what steps to take.

What the employer should do

In the meeting the employer should ask the person who raised the grievance to:

- provide more information about it
- discuss how it could be resolved

The employer should also:

- remain impartial
- do their best to understand the feelings of the person raising the grievance
- take notes or appoint someone else to take them
- go through the evidence
- consider if they need to investigate further
- take care in deciding on any actions – usually the employer will not need to make an immediate decision
- sum up the main points at the end

They should give the person who raised the grievance the chance to:

- explain their side
- express how they feel – they might need to 'let off steam', particularly if the grievance is serious or has lasted a long time
- ask questions
- show evidence
- provide details of any witnesses the employer should contact

What the companion should do

With the permission of the person raising the grievance, the companion is allowed to:

- take notes
- set out the case of the person raising the grievance
- respond for them to any comments or points made at the meeting
- talk with them during the meeting

The companion cannot:

- answer questions put to the person raising the grievance
- prevent anyone else at the meeting from explaining their side of things

Investigating the grievance

The employer might need to take some time to investigate so they can make a fair decision.

If necessary they can set up another grievance meeting once they have found out more information.

[Find out more about investigations](#)

At the end of the meeting

The employer should:

- give the employee copies of the meeting record and notes taken
- ask the employee to confirm the notes are accurate
- tell the employee when they will get a decision

The amount of time needed for a decision should be in line with your organisation grievance policy, if there is one.

If there are delays, for example if further investigation is needed, the employer should explain how long the delays will be and why.

The employer can withhold some information in certain circumstances, for example to protect a witness.

Sharing information

Under data protection law (UK GDPR), the employer should get consent from the person who provided information before sharing it.

This might mean the employer needs to make some information anonymous before sharing it.

You can find out more about data protection on the [Information Commissioner's Office \(ICO\) website](#).

Related content

[/acas-code-of-practice-on-disciplinary-and-grievance-procedures](#)

5. Step 5: Deciding the outcome

After following a fair grievance procedure, the employer should decide on the best outcome based on:

- the findings from meetings and investigations
- what is fair and reasonable
- what their organisation has done in any similar cases before

The employer should tell the employee of the outcome as soon as possible and in writing, for example in a letter or email.

If the grievance involved other people in the organisation and it was upheld, the employer might need to start a [disciplinary procedure](#).

If the employer decides no action is needed

To make sure there is no bad feeling, the employer should talk privately with the employee.

It's a good idea for the employer to keep a note of how they carried out the procedure for future reference.

The employee's right of appeal

The employer should offer the employee the right of appeal.

This is so the employee can raise an appeal if they feel:

- the outcome does not resolve the problem
- any stage of the grievance procedure was wrong or unfair

[Find out more about raising an appeal](#)

Related content

[/acas-code-of-practice-on-disciplinary-and-grievance-procedures](#)

6. Step 6: After the grievance

After a grievance procedure has finished, employers might want to give some information about it to individual staff. It's also important to keep records.

Talking to staff

The grievance outcome and details must remain confidential. However, where appropriate, it can be a good idea for the employer to talk privately with any staff who were directly involved in the grievance.

Usually this would be to let them know that the process is finished and to remind them not to talk about it with colleagues.

Employers could also tell them about any changes that will be introduced as a result of the process. For example updating a policy or providing training on a particular topic.

This helps to reduce the bad feeling and gossip which can happen when staff are involved in formal procedures.

Keeping a record

No matter what the outcome, employers should keep a written record of all grievance cases to help with any questions or similar cases in the future.

In line with data protection law (UK GDPR), records should be:

- confidential
- only be kept for as long as necessary

[Find out more about data protection and employment records from the Information Commissioner's Office \(ICO\)](#)

If the employee needs to take things further

If the employee feels they've tried everything and their problem is still not resolved, they could in some cases make a claim to an [employment tribunal](#).

Get more advice and support

If you need help with a grievance, you can [contact the Acas helpline](#) to talk through your options.

Acas also provides:

- [training on discipline and grievance procedures](#)
- [tailored support for employers](#)
- [free e-learning on discipline and grievance](#)

Related content

[/acas-code-of-practice-on-disciplinary-and-grievance-procedures](#)